

Independent feeder under clause 3D(8) — dismissed for want of prosecution

High Court of Judicature at Allahabad · Division Bench · 13 August 2019 · Writ-C No. 64967 of 2009 (Allahabad) · Writ - C No. 64967 of 2009 · **Writ dismissed for want of prosecution; 2009 interim vacated**

HEADNOTE

Writ by a factory seeking exclusive supply from an independent feeder under clause 3D(8) of the Electricity Supply Code, 2005. Interim mandamus issued in 2009 to provide an independent power line within one month or show cause. In 2019 the petition was dismissed for want of prosecution after counsel said the client was not responding, and the interim order was vacated. The independent-feeder claim was not decided on merits.

FACTUAL SUMMARY

M/s Shree Sidhali Steels Ltd. sought supply from an independent feeder at its cost, with no other consumer fed from that line. It alleged the licensee was violating the agreement by withholding that supply. On 1 December 2009 the Court issued an interim mandamus to provide an independent power line under clause 3D(8) of the Electricity Supply Code, 2005 within one month or show cause. On 13 August 2019 counsel said the client was not responding. The writ was dismissed for want of prosecution and the interim order vacated.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3D(8)

independent feeder

HOLDING

On 1 December 2009 the Court issued an interim mandamus directing the respondents to provide an independent power line as per clause 3D(8) of the Electricity Supply Code, 2005 within one month or show cause. On 13 August 2019 the writ was dismissed for want of prosecution after counsel stated the client was not responding, and the interim order was vacated. ¶ 1-2

FLAG clause cited as 3D(8); numbering does not match the UPESC 2005 decimal scheme

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance Writ by a factory seeking exclusive supply from an independent feeder under clause 3D(8) of the Electricity Supply Code, 2005. Interim mandamus issued in 2009 to provide an independent power line within one month or show cause.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS WERE ENTITLED TO AN INDEPENDENT FEEDER, AND TO EXCLUSIVE USE OF THAT FEEDER, UNDER CLAUSE 3D(8) OF THE ELECTRICITY SUPPLY CODE, 2005

The 2009 order was only an interim mandamus or show-cause; the 2019 dismissal for want of prosecution vacated that interim without a merits decision. ¶ 1-2